

25NWCV04143 25NWCV04143

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Case Number: 25NWCV04143 Hearing Date: September 28, 2026 Dept: D

GERARDO MONTES V. DAVID S.

BARCLAY

CASE NO.: 25NWCV04143

HEARING: 09/28/2026 @ 9:30 a.m.

#18

TENTATIVE ORDER

Defendant David S. Barclay's
motion to set aside entry of default is GRANTED.

Defendant David S. Barclay's
motion to quash service of summons is GRANTED.

Moving party to give notice.

Defendant David S. Barclay moves
to set aside entry of default.

Defendant David S. Barclay moves
to quash service of summons and complaint.

Background

This action arises from a dispute

as to ownership of two parcels of property.

On November 20, 2025, plaintiff Gerardo Montes ("Plaintiff") filed a complaint against defendants David S. Barclay ("Defendant") and DOES 1 through 10, inclusive, for (1) Allocation of Appropriate Interest Attributable to Plaintiff for Home Improvements and Appreciation in the Value of Properties Due to Said Home Improvements, (2) Partition by Sale of Real Properties, and (3) Conversion.

On May 12, 2026, Defendant was served with, inter alia, the summons and the complaint via personal service at 67710 Rio Arapaho Road, Cathedral City, CA 92234. (See 05/18/26 Proof of Service of Summons.) The proof of service is executed by a registered process server. (Id.)

On June 12, 2026, at the request of Plaintiff, default was entered against Defendant. (06/12/26 Request for Entry of Default.)

On June 13, 2026, Jeffrey Orr Law, PC substituted in as counsel of record for Defendant. (See 07/13/26 Substitution of Attorney.) Defendant was previously self-represented. (Id.)

On July 31, 2026, Defendant filed a: (1) motion to set aside entry of default; and (2) motion to quash service of summons (collectively, the "Motions").

On September 22, 2026, Plaintiff filed an opposition to the Motions. Any opposition was required to have been filed and served at least nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Although the opposition is untimely, the Court exercises its discretion and will consider the untimely opposition. (Cal. Rules of Court, Rule 3.1300(d).)

The Court will address the Motions in this ruling.

Motion to Set Aside Entry of Default

Defendant moves to set aside the entry of default on the following grounds: (1) the default is void because Defendant was never validly served with the summons and the complaint; (2) the default was taken against Defendant where service did not result in actual notice in time to defend, through no avoidance of service or inexcusable neglect; and (3) alternatively, the default was the product of mistake, inadvertence, surprise, or excusable neglect. (Not. of Mot. at p. 2:1-8.)

A.

Legal Standard

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken.” (Ibid. [italics added].)

“The court may, upon motion of the injured party . . . set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544 [citation omitted].) “[A] default judgment entered against a defendant who was not served with the summons in the manner prescribed by statute is void.” (Ibid. [citation omitted].) Code of Civil Procedure § 473(d) empowers “the court [to] . . . set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service.” (Ibid.)

“When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may file a notice of motion to set aside the default or default judgment and for leave to defend the action.” (Code Civ. Proc., § 473.5, subd. (a).) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a

default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5, subd. (a).)

Personal service is accomplished when a copy of the summons and complaint is delivered to the person to be served. (Code Civ. Proc., § 415.10.)

“In lieu of personal delivery of a copy of the summons and complaint to the person to be served . . . a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (Code Civ. Proc., § 415.20, subd. (a).)

“It is well settled that appellate courts have always been and are favorably disposed toward such action upon the part of the trial courts as will permit, rather than prevent, the adjudication of legal controversies upon their merits.” (Benjamin v. Dalmo Mfg. Co. (1948) 31 Cal.2d 523, 525.) “[T]he filing of a proof of service creates a rebuttable presumption that . . . service was proper.” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441.) “[A] registered process server’s declaration establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.” (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

B.
The Default Should Be Set Aside

Initially, the Court notes that no proposed answer or other pleading is attached to the declarations in support of the motion. The Court has reviewed all documents in support of the Motions, and no proposed answer or other responsive pleading has been filed. Accordingly, such fact precludes relief from entry of default under Code Civ. Proc. § 473(b).

Defendant attests that he was never personally served with the summons or the complaint in this action. (Declaration of David S. Barclay Filed July 21, 2026 ("Barclay Decl.") ¶ 4.) No one ever attempted to leave the summons and complaint with any member of Defendant's household or any person apparently in charge of his residence or place of business. (Id. ¶ 5.) The summons and the complaint were not mailed to Defendant's residence. (Id. ¶ 6.) Defendant's partner found a rolled-up stack of papers on the front porch of Defendant's residence. (Id. ¶ 9.) Defendant contends that he has a meritorious defense to this action. (Id. ¶ 21.) Defendant attests that granting the Motions will not prejudice Plaintiff. (Id. ¶ 22.)

Jonathan Fuh, who is Defendant's partner, provides a declaration and attests, inter alia, that "[o]n either Wednesday, May 13, 2026, or Thursday, May 14, 2026, [he] observed a rolled-up stack of papers, stapled together, sitting unattended on the front porch of the residence" he shares with Defendant. (Declaration of Jonathan Fuh Filed July 21, 2026 ("Fuh Decl.") ¶ 4.) No process server, sheriff, marshal, or other person appeared at their residence and attempted to serve Defendant. (Id. ¶ 5.) No one ever asked Mr. Fuh to accept service on behalf of Defendant. (Id. ¶ 6.) No copy of the summons or complaint in this action was ever delivered to Defendant by mail, personally, or otherwise served upon him. (Id. ¶ 9.)

On opposition, Jonathan Charles Kraut ("Kraut") provides a declaration. The declaration of Mr. Kraut relevantly recounts the filing of the complaint, sets forth the contents of the proof of service as to the summons and the complaint, and provides a copy of the request for entry of default form. (Kraut Decl. ¶¶ 1-3, Exs. A, B, C.)

The Court finds that relief is not warranted under Code Civ. Proc. § 473.5 as Defendant reviewed the summons and the complaint, at the latest, on May 14, 2026. (Barclay Decl. ¶ 8.) The Court recognizes that Defendant did not learn of the request for entry of default until June 18, 2026. (Barclay Decl. ¶¶ 19-20.) However, Defendant had actual notice in time to defend this action.

Nevertheless, the Court finds that setting aside the default is proper under Code Civ. Proc. § 473(d).

The declarations of Defendant and Mr. Fuh collectively establish that service was not properly effectuated. Under Ellard, supra, 94 Cal.App.4th 540, 544, the default should be set aside. Based on the evidence presented in support of the Motions, Defendant was not served with the summons and the complaint either personally or by substitute service. The declaration of Attorney Kraut does not lead the Court to a finding that service was proper. For instance, Plaintiff has not provided a declaration from the registered process server in support of the opposition. Thus, relief under Code of Civil Procedure section 473(d) is appropriate. Due to the lack of proper service, the default is void.

Accordingly, the motion to set aside entry of default is GRANTED.

Motion to Quash Service of Summons

A.

Legal Standard

A defendant who takes the position that the service of summons as made upon him did not bring him within the jurisdiction of the court, may serve and file a notice of motion to quash the service." (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) "The effect of such notice is to place upon the plaintiff the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service." (Ibid.) "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1).)

B. Quashing Service of the Summons and the Complaint is Proper

The Court references its recitation of the evidence and its analysis from above and incorporates such recitation herein. Defendant is contesting service. Plaintiff therefore has "the burden of proof . . . to establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Superior Court (2007)

148 Cal.App.4th 556, 568.) The Court finds that the declarations in support of the Motions establish that service was improper. Finally, Plaintiff's reliance on *Trackman v. Kenney* (2010) 187 Cal.App.4th 175 is inapposite.

The Court therefore GRANTS the motion to quash service of summons.

Conclusion

Defendant David S. Barclay's motion to set aside entry of default is GRANTED.

Defendant David S. Barclay's motion to quash service of summons is GRANTED.